

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #02	CCRB Case #: 202100516	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 01/07/2021 11:17 AM	Location of Incident: 61-15 Metropolitan Avenue	18 Mo. SOL 7/7/2022	Precinct: 104		
Date/Time CV Reported Thu, 01/07/2021 9:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/25/2021 10:45 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Anthony Wright	4255	935991	104 PCT
2. POM Travis Nardello	08018	960995	104 PCT
3. DT3 Paul Palminteri	02290	951004	104 DET
4. An officer			104 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andrew Incantalupo	19516	962493	104 PCT
2. POM Michael Gonzalez	12364	952797	104 PCT
3. POF Kristen Candelaria	03830	964962	104 PCT
4. POM Brandyn Baltusis	03975	965658	104 PCT
5. SGT Michael Ramirez	05350	934089	104 PCT
6. POM Mark Guerrero	00881	966088	104 PCT
7. DT3 Kevin Golden	04278	948034	104 DET

Officer(s)	Allegation	Investigator Recommendation
A . DTS Anthony Wright	Off. Language: Detective Anthony Wright made remarks to § 87(2)(b) based upon race.	A . Unfounded
B . DTS Anthony Wright	Discourtesy: Detective Anthony Wright spoke discourteously to § 87(2)(b)	B . Unfounded
C . POM Travis Nardello	Force: Police Officer Travis Nardello used physical force against § 87(2)(b)	C . Exonerated
D . An officer	Force: An officer restricted § 87(2)(b) breathing.	D . Unfounded
E . DTS Anthony Wright	Force: Detective Anthony Wright used physical force against § 87(2)(b)	E . Substantiated
F . DTS Anthony Wright	Force: Detective Anthony Wright struck § 87(2)(b) with a blunt instrument.	F . Substantiated
G . POM Travis Nardello	Abuse: Police Officer Travis Nardello threatened § 87(2)(b) with the use of force.	G . Exonerated
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 7, 2021, Lieutenant Edward Fackler of the 104th Precinct filed this complaint on the behalf of § 87(2)(b) with the Internal Affairs Bureau via telephone, generating IAB log § 87(2)(b) (Board Review 01). This case was referred to the CCRB, where it was received on January 25, 2021, under IAB log § 87(2)(b).

On January 7, 2021, at approximately 11:17 a.m., § 87(2)(b) shoplifted from the CVS store at 61-15 Metropolitan Avenue in Queens, and Detective Anthony Wright and Police Officer Travis Nardello of the 104th Precinct saw § 87(2)(b) flee the store from the emergency exit. Detective Wright exited his police vehicle and allegedly said, "You black motherfucker, get on the ground" (**Allegations A and B – Offensive Language: Race, Discourtesy: Word; unfounded**). Police Officer Nardello forcibly brought § 87(2)(b) down to the ground (**Allegation C – Force: Physical Force, exonerated**). An officer allegedly placed a knee on § 87(2)(b) back, restricting his breathing (**Allegation D – Force: Restricted Breathing, unfounded**). Detective Wright punched § 87(2)(b) in the face multiple times while wearing a ring with a large ornament and jagged edges (**Allegations E – Force: Physical Force & Allegations F – Force: Other Blunt Instrument as Club, substantiated; Allegation I – Other Possible Misconduct Noted**). Police Officer Nardello also punched § 87(2)(b) and threatened to use his Taser against him (**within Allegation C; Allegations G – Abuse of Authority: Threat of Force, exonerated**). During the struggle, Detective Wright allegedly said, "Shut the fuck up, motherfucker," and after § 87(2)(b) was handcuffed, Detective Wright allegedly said, "I told your ass, you were trying to be tough," and again told § 87(2)(b) to "shut the fuck up" after § 87(2)(b) apologized to him (**within Allegation A**). § 87(2)(b) was arrested for petit larceny (Board Review 02) and treated at § 87(2)(b) Hospital in police custody. He allegedly sustained a torn pupil/cornea, a fractured spine, broken teeth, and lacerations (HIPAA medical release forms were mailed to § 87(2)(b) to obtain his permission to request his medical records from § 87(2)(b) Hospital and FDNY, but he failed to return these forms or to respond to any follow-up contact attempts).

§ 87(2)(b)
§ 87(2)(b)
§ 87(4-b)

Body-worn camera (BWC) footage was obtained from the BWCs of Police Officer Nardello, Detective Wright, Police Officer Kristen Candelaria, Police Officer Michael Gonzalez, Police Officer Andrew Intantalupo, Police Officer Mark Guerrero, and Sergeant Michael Ramirez of the 104th Precinct. These videos are saved in IA#88 (Board Review 03) and are summarized in IA#s 100, 101, 102, and 122 (Board Review 4-7). Surveillance footage from CVS is saved in IA#90 (Board Review 08) and is summarized in IA#164 (Board Review 09).

Findings and Recommendations

Allegation (A) Offensive Language: Detective Anthony Wright made remarks to § 87(2)(b) based upon race.

Allegation (B) Discourtesy: Detective Anthony Wright spoke discourteously to § 87(2)(b)

§ 87(2)(b) was interviewed by telephone on May 10, 2021 (Board Review 10). Police Officer Nardello (Board Review 11) and Detective Wright were interviewed on October 26, 2021 (Board Review 12). Detective Palminteri was interviewed on December 2, 2021 (Board Review 13). Contact was unable to be established with CVS employees § 87(2)(b) and § 87(2)(b) who were identified by the investigation as potential witnesses.

§ 87(2)(b) stated that after he shoplifted from CVS and fled via the emergency exit, he heard someone behind him say, “Where do you think you’re going?” He turned around and saw Police Officer Nardello and Detective Wright. Before § 87(2)(b) was brought down to the ground (see **Allegation C**), Detective Wright allegedly said, “You black motherfucker, get on the ground.” During the struggle to handcuff § 87(2)(b) Detective Wright allegedly said, “Shut the fuck up, motherfucker” in response to § 87(2)(b) saying he could not breathe (see **Allegation D**). After § 87(2)(b) was handcuffed, Detective Wright allegedly said, “I told your ass, you were trying to be tough.” § 87(2)(b) apologized to Detective Wright, who allegedly replied, “Shut the fuck up.”

Detective Wright denied using profanities toward § 87(2)(b) and addressing § 87(2)(b) race, and Police Officer Nardello was unaware of Detective Wright making any such statements. Detective Palminteri did not arrive at the scene until after § 87(2)(b) was handcuffed and taken to a police vehicle, and he made no mention of any officer making any such statements toward § 87(2)(b).

At no point in Police Officer Nardello’s (Board Review 14) and Detective Wright’s BWC footage (Board Review 15) is Detective Wright, or any other officer, heard using profanities toward § 87(2)(b) or making any references toward § 87(2)(b) race. As such, it is recommended that **Allegations A and B be unfounded.**

Allegation (C) Force: Police Officer Travis Nardello used physical force against § 87(2)(b)
Allegation (E) Force: Detective Anthony Wright used physical force against § 87(2)(b)
Allegation (F) Force: Detective Anthony Wright struck § 87(2)(b) with a blunt instrument.
Allegation (G) Abuse of Authority: Police Officer Travis Nardello threatened § 87(2)(b) with the use of force.

§ 87(2)(g), § 87(4-b)

It is undisputed that an officer brought § 87(2)(b) down to the ground after he shoplifted from CVS, that both Police Officer Nardello and Detective Wright punched § 87(2)(b) while attempting to handcuff him, and that Police Officer Nardello threatened to use a Taser against § 87(2)(b).

§ 87(2)(b) stated that after Detective Wright said, “You black motherfucker, get on the ground” (see **Allegations A and B**), Detective Wright “charged” toward him, handcuffed his right arm, and then forced him down to the ground in an unknown manner before § 87(2)(b) had the opportunity to surrender his left arm. § 87(2)(b) knees and the front of his face hit the ground, and he sustained lacerations and swelling to his face from the fall. § 87(2)(b) laid flat on his stomach against the ground with his right arm behind his back and his left arm extended away from his body. Police Officer Wright punched § 87(2)(b) in his mouth and left eye with handcuffs in his hand (like brass knuckles) approximately eight to nine times, knocking out some of § 87(2)(b) teeth and causing bleeding. Police Officer Nardello then punched § 87(2)(b) in his left eye or mouth two or three times. § 87(2)(b) did not move his body in any fashion while he was on the ground. The punches lasted for approximately two minutes, resulting in a torn pupil/cornea and partial blindness in his left eye.

At runtime 00:54 of Police Officer Nardello’s BWC footage (Board Review 14), Police Officer Nardello exits the police vehicle and runs toward § 87(2)(b) attempts to run away from Police Officer Nardello, who chases after him. Police Officer Nardello’s BWC then falls off at

runtime 01:07. Police Officer Nardello reaffixes his BWC at runtime 03:43 while bringing § 87(2)(b) to a police vehicle.

At runtime 01:07 of Detective Wright's BWC footage (Board Review 15), Detective Wright exits the police vehicle, and Police Officer Nardello is seen bringing § 87(2)(b) down to the ground by pushing § 87(2)(b) back while § 87(2)(b) is on his hands and knees. Detective Wright tells § 87(2)(b) to get on the ground and put his hands behind his back. At runtime 01:38, Detective Wright and Police Officer Nardello grab § 87(2)(b) left arm, which is near his face and appears tense, and they tell him to put his arm behind his back. A lone bystander says, "Just let them cuff you." At runtime 01:42, Detective Wright punches § 87(2)(b) in the face twice in rapid succession while telling him to put his hands behind his back. Detective Wright is kneeling on the ground next to § 87(2)(b) head when he punches § 87(2)(b) in the face. § 87(2)(b) is not moving his head, and he appears to be motionless at this time. After the second punch, § 87(2)(b) screams in pain and says Detective Wright hit him in his eye. (See Board Review 27 for a subclip of Detective Wright's BWC footage showing just the sequence in which he punches § 87(2)(b) in the face.) Detective Wright is wearing a ring with a large ornament and jagged edges on the hand he used to punch § 87(2)(b) (see Board Review 29 for screenshots of the ring). At runtime 01:56, Police Officer Nardello says, "You're going to get Tased," and another male voice (possibly a UPS driver standing nearby) says, "They're going to Tase you, put your hands behind your back." At runtime 02:09, Detective Wright appears to punch § 87(2)(b) left shoulder while telling him to put his hands behind his back. § 87(2)(b) left hand is underneath his torso, and his right hand is handcuffed behind his back. At runtime 02:58, Police Officer Nardello pulls § 87(2)(b) left arm behind his back and finishes handcuffing § 87(2)(b). During the struggle, Police Officer Nardello straddles § 87(2)(b) legs and then kneels on the ground behind § 87(2)(b) back while handcuffing him.

None of the other BWC videos capture the physical struggle between Police Officer Nardello, Detective Wright, and § 87(2)(b). Police Officer Nardello is not seen punching § 87(2)(b) in any of these videos. At no point does Detective Wright punch § 87(2)(b) while holding handcuffs, in the fashion of brass knuckles.

At runtime 25:48 of Police Officer Baltusis' BWC footage (Board Review 16), § 87(2)(b) tells an EMT that Detective Wright knocked his teeth out and that his eye was bothering him. At runtime 26:21, an EMT looks at § 87(2)(b) eyes with a flashlight and says his pupil is enlarged.

§ 87(2)(b) Medical Treatment of Prisoner Report (Board Review 17) states that § 87(2)(b) was transported to § 87(2)(b) Hospital after he complained of pain to his face and left eye resulting from a forcible takedown and hand strikes. § 87(2)(a) – PHL 18(6)
§ 87(2)(b) The DD5s do not mention any eye or teeth injuries.

HIPAA medical release forms were mailed to § 87(2)(b) but he failed to return these forms or to respond to any follow-up contact attempts.

Police Officer Nardello stated that § 87(2)(b) started to run when he noticed his police vehicle enter the CVS parking lot behind him. Police Officer Nardello exited the police vehicle, told § 87(2)(b) to stop, and tried to grab him, and § 87(2)(b) pushed him in his chest with both hands. Police Officer Nardello then grabbed § 87(2)(b) jacket, and "threw" him down to the ground as he tried to run away, and § 87(2)(b) landed face-down. (Police Officer Nardello later stated that § 87(2)(b) "swung himself" after he grabbed him, and that this momentum caused § 87(2)(b) to fall.) Police Officer Nardello also fell and landed on his knees by § 87(2)(b) legs. The officers

told § 87(2)(b) to stop resisting and put his hands behind his back, and § 87(2)(b) tucked his hands underneath his body. Police Officer Nardello punched § 87(2)(b) “a couple” of times in his upper back underneath his shoulder in order to free his arms from underneath his body. Police Officer Nardello did not know where Detective Wright punched § 87(2)(b). After watching Detective Wright’s BWC footage, Police Officer Nardello stated that the voice that says, “You’re going to get Tased” was possibly his own. He stated that both he and Detective Wright carry Tasers, and that he would make such a statement to gain § 87(2)(b) compliance.

Before watching his BWC footage, Detective Wright stated that while he and Police Officer Nardello tried to handcuff § 87(2)(b), § 87(2)(b) struggled with them and tried to get away. Detective Wright said he punched § 87(2)(b) in his upper body (chest/shoulders) an unknown number of times so § 87(2)(b) would “comply with hands.” He did not recall whether he punched § 87(2)(b) in the face, but he noted this was possible. He denied using handcuffs to punch § 87(2)(b). After watching his BWC footage, when asked why he punched § 87(2)(b) in his face, Detective Wright stated, “I was throwing punches, so I didn’t know where it was going... I was trying to hit the body, but my camera... I was throwing punches to get his hands.” He did not punch § 87(2)(b) before this moment, and he did not know whether Police Officer Nardello punched him before this moment.

Patrol Guide Procedure 221-02 (Board Review 19) defines *active resistance* as “physically evasive movements to defeat [an officer’s] attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody.” It defines *active aggression* as a “threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent.”

Patrol Guide Procedures 221-01 (Board Review 20) and 221-02 (Board Review 19) state that officers may use force when it is reasonable to ensure officers’ or civilians’ safety, or when it is reasonable to place a person in custody or to prevent escape from custody. Officers’ use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject’s voluntary compliance, must be prioritized. Officers shall “apply no more than the reasonable force necessary to gain control,” and excessive force is not tolerated. Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject; members of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject’s violent history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase likelihood of violence.

Patrol Guide Procedure 221-08 (Board Review 21) states, “A Conducted Electrical Weapon (CEW) can be an effective means of subduing aggressive suspects and emotionally disturbed persons (EDPs)... A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present... It is prohibited to use a CEW in situations that do not require the use of physical force.”

Administrative Guide Procedure 304-07 (Board Review 28) states, “Rings may be worn if they are generally smooth, and not likely to catch on other objects. Rings with jagged edges, raised stones, etc., are not permitted.”

As shown in the BWC footage, § 87(2)(b) ran away when Police Officer Nardello first attempted to grab him, and once § 87(2)(b) was on the ground, he refused to surrender his hands. § 87(2)(g)

It is therefore recommended that **Allegations C and G** be exonerated.

§ 87(2)(g) The BWC footage corroborates § 87(2)(b) account that at least two of these punches struck him in the eye. § 87(2)(g)

BWC footage shows him complaining of pain to his eye immediately after Detective Wright's punches, and then subsequently to an EMT who examines his eye and notes that his pupil is dilated. § 87(2)(g)

It is therefore recommended that **Allegation E** be substantiated.

§ 87(2)(g) It is therefore recommended that **Allegation F** be substantiated, § 87(2)(g), § 87(4-b)

Allegation (D) Force: An officer restricted § 87(2)(b) breathing.

§ 87(2)(b) stated that immediately after he was brought down to the ground, an officer placed a knee in the middle of his back on his spine, but he did not know whose knee this was. § 87(2)(b) struggled to breathe due to the knee on his back, and he told the officers he could not breathe. Detective Wright then whispered, "Never mind all that," "You think you can't breathe now, huh?" "Shut up, you can't breathe, right?" and, "Shut the fuck up, motherfucker" (see **Allegation B**). The knee remained on § 87(2)(b) back for approximately one minute, during which time § 87(2)(b) did not move his body in any fashion.

Police Officer Nardello did not recall whether he placed a knee on § 87(2)(b) back, but he stated that he may have unintentionally done so as he switched positions while attempting to handcuff § 87(2)(b). Detective Wright denied placing a knee on § 87(2)(b) body and did not recall whether

Police Officer Nardello did so.

At runtime 01:09 of Detective Wright's BWC footage, Police Officer Nardello is seen with his knees straddling § 87(2)(b) body after he brings § 87(2)(b) down to the ground. At runtime 01:36, § 87(2)(b) appears to roll over onto his right side, and Detective Wright positions himself near § 87(2)(b) head, off § 87(2)(b) body. At runtime 02:19, Police Officer Nardello straddles § 87(2)(b) waist while he is still on his right side. At runtime 03:24, § 87(2)(b) says, "I can't breathe," and Police Officer Nardello replies, "Then stop moving, you can breathe. Nobody's on you." § 87(2)(b) and Police Officer Nardello are not in the frame in this moment. § 87(2)(b) repeats, "I can't breathe," and Police Officer Nardello says, "You're on the side, relax." At runtime 03:43, § 87(2)(b) is seen in handcuffs on his left side. At no point is any officer seen placing a knee on § 87(2)(b) back.

§ 87(2)(g)

§ 87(2)(g) _____
_____ It is
therefore recommended that **Allegation D** be **unfounded**.

§ 87(2)(g), § 87(4-b) _____

Allegations Not Pleaded

- At runtime 01:39 of Police Officer Baltusis' BWC footage (Board Review 16), Detective Palminteri is holding § 87(2)(b) handcuffed arms by the chain of the handcuffs. § 87(2)(b) body dips forward while Detective Palminteri's hand and § 87(2)(b) handcuffed arms lift upwards, and he says he cannot breathe. § 87(2)(b) did not make an allegation regarding this sequence in his interview, and Detective Palminteri stated that § 87(2)(b) leaned forward on his own while he was holding § 87(2)(b) handcuffs. Therefore, no Physical Force or Restricted Breathing allegations are pleaded against Detective Palminteri.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 24).
- Detective Anthony Wright has been a member of service for 17 years and has been a subject in 23 other CCRB complaints and 42 other allegations, of which four were substantiated in three cases:
 - 201305640 involved substantiated Stop and Vehicle Search allegations. The Board recommended Command Discipline, and the NYPD imposed Command Discipline A.
 - 201311116 involved a substantiated Vehicle Search allegation. The Board

Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 02

Investigator:	<u>JP Lozada</u>	<u>SI Jean-Paul Lozada</u>	<u>04/29/2022</u>
	Signature	Print Title & Name	Date

Squad Leader: Alexander Opoku-Agyemang IM Opoku-Agyemang 5/2/2022
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____